

Satya Veer Singh vs State Of Uttarakhand on 12 February, 2013

Author: Prafulla C. Pant

Bench: Prafulla C. Pant

IN THE HIGH COURT OF UTTARAKHAND AT
NAINITAL

Criminal Writ Petition No. 131 of 2013
with
Urgency Application No. 768 of 2013
Stay Application No. 765 of 2013

1. Satya Veer Singh
S/o Ghasitu Singh
 2. Ghasitu Singh
S/o Kundan Singh
 3. Smt. Attari Devi
W/o Ghasitu Singh
 4. Reena
D/o Ghasitu Singh
 5. Neetu
S/o Ghasitu Singh
- All petitioners R/o Village Paldi
Pargana Shikar Pur P.S Shahpur
District Muzaffarnagar U.P.

..... Petitioners

Versus

1. State of Uttarakhand, through
Senior Superintendent of Police
District Dehradun
2. Station Officer
Police Station Vikas Nagar
District Dehradun
3. Anju
W/o Satya Veer Singh
D/o Ilam Singh
R/o Mohalla Bhima Wala
Vikas Nagar, P.S. Vikas Nagar
District Dehradun

.....Respondents.

Shri Parikshit Saini, Advocate, present for the petitioners.
Shri Hari Om Bhakuni, Brief Holder, present for the State.

Hon'ble Prafulla C. Pant, J.

Urgency Application No. 768 of 2013 is allowed.

(2) Heard.

(3) By means of this writ petition moved under Article 226 of Constitution of India, the petitioners have sought quashing of the First Information Report registered as Crime No. 08 of 2013, relating to offences punishable under section 498A, 323, 504 and 506 of I.P.C., and one punishable under section 3/4 of Dowry Prohibition Act, 1961, at Police Station Vikas Nagar, District Dehradun.

(4) Learned counsel for the petitioners submitted that the impugned criminal proceedings are counter blast to the petition filed by petitioner no.1 against his wife (respondent no.3 Anju) under section 9 of Hindu Marriage Act 1955. It is further stated that it was respondent no.3 who slapped her husband (petitioner no.1) in the court. It appears that there is also a case pending between the respondent no.3 and her husband under protection of Women from Domestic Violence Act, 2005. However, it appears that there are no specific allegation against the petitioner no.2 to petitioner no.5, who are relatives of the husband.

(5) Admit the petition.

(6) Learned counsel for the State prays for and is allowed six weeks' time to file the counter affidavit.

(7) Issue notice to respondent no.3 Anju, who may also file her counter affidavit within a period of six weeks.

(8) Having considered submissions of learned counsel for the petitioners, and learned counsel for the State, as an interim measure, it is directed that the petitioner no. 2 Ghasitu Singh, petitioner no.3 Attari Devi, petitioner no.4 Reena and petitioner no.5 Neetu shall not be arrested in connection with Crime No. 08 of 2013, relating to offences punishable under section 498A, 323, 504 and 506 of I.P.C., and one punishable under section 3/4 of Dowry Prohibition Act, 1961, registered at Police Station Vikas Nagar, District Dehradun, during investigation, provided they cooperate with the investigating agency. As to the petitioner no.1 Satya Veer Singh it is directed that if he surrenders before the court concerned his bail application shall be heard and disposed of without unreasonable delay. (Stay Application No. 765 of 2013 stands disposed of).

(9) List after six weeks.

(Prafulla C. Pant, J.) (Vacation Judge) Dt.12.02.2013 NP